

RESTAURANT LEASE AGREEMENT

THIS LEASE AGREEMENT is made as of December 6, 2027, between SALTMARK HARBOR PROPERTIES ("Landlord") and TIDEWATER OYSTER BAR LLC ("Tenant").

Article 1 — Premises and Term

1.1 The Premises consist of 3,300 square feet of waterfront retail space with an adjoining outdoor patio, leased for a Term of ten years.

Article 2 — Rent

2.1 Tenant shall pay Base Rent of \$71,000 per annum, with 3% annual escalations, plus Percentage Rent of 6% of Gross Sales above a Breakpoint of \$1,050,000.

Article 3 — Mandatory Mediation and Arbitration

3.1 The parties shall first attempt to resolve any dispute arising under this Lease through non-binding mediation administered by a mediator mutually selected within thirty days of a written request by either party.

3.2 If mediation does not resolve the dispute within sixty days, the dispute shall be submitted to binding arbitration under the Commercial Arbitration Rules of the American Arbitration Association, with the arbitration to be held in the city in which the Premises are located.

3.3 The prevailing party in any arbitration under this Article shall be entitled to recover its reasonable attorneys' fees and arbitration costs from the non-prevailing party.

Article 4 — Jury Trial and Venue Waiver

4.1 Each party knowingly and voluntarily waives any right to a jury trial and any objection to venue in connection with any proceeding permitted under Article 3.

Article 5 — Maintenance and Patio Use

5.1 Tenant shall maintain the outdoor patio furniture, umbrellas, and heating elements in good condition and shall remove such items during named storm events upon Landlord's notice.

Article 6 — Utilities

6.1 Tenant shall pay directly for all utilities serving the Premises, including a dedicated seafood tank aeration system.

Article 7 — Subletting

7.1 Tenant shall not assign this Lease or sublet the Premises without Landlord's prior written consent, not to be unreasonably withheld.

Article 8 — Termination

8.1 Landlord may terminate this Lease if Tenant's health department permit is revoked and not reinstated within forty-five days.

IN WITNESS WHEREOF, the parties have executed this Lease as of the date first written above.

Landlord: Saltmark Harbor Properties By: _____

Tenant: Tidewater Oyster Bar LLC By: _____